

Court No. - 39

Case :- WRIT - C No. - 30688 of 2021

Petitioner :- M/S Mayasheel Retail India Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sandeep Singh

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Krishan Pahal,J.

As prayed by learned counsel for the petitioner, put up this case as fresh on 6.12.2021.

Order Date :- 26.11.2021

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Court No. - 29

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Petitioner :- M/S Mayasheel Retail India Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sandeep Singh

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh, Parv Agrawal

Hon'ble Pritinker Diwaker,J.

Hon'ble Ashutosh Srivastava,J.

Order on Impleadment Application:

Application for impleadment is allowed.

Let necessary impleadment be carried out by the petitioner today in the Court itself.

Order on Writ Petition:

Case of the petitioner is that electricity connection has not been given to the petitioner on the ground that no objection certificate has not been given by its landlord with whom a litigation is pending.

Learned counsel appearing on behalf of respondent no.2 submits that as per rules, if 'no objection certificate' is not being given by any landlord, tenant has to submit an Indemnity Bond as provided in Clause 4.4 of the U P Electricity Supply Code 2005.

Learned counsel for the petitioner submits that the petitioner would submit the said indemnity bond as desired by the Power Corporation. However, the Corporation be directed to immediately grant electricity connection to the petitioner. He submits that other required formalities would also be completed by the petitioner.

In view of above, nothing survives for adjudication. In the eventuality of completing all the required formalities, including that of submitting an indemnity bond by the petitioner, it is expected from respondent no.2 to pass an appropriate order in accordance with law.

Petition is, accordingly, disposed of.

Order Date :- 20.12.2021

RKK/-